

Shilpa Sharma vs Aman Kumar Sharma on 23 May, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2023:AHC:113218

Court No. - 1

Case :- TRANSFER APPLICATION (CIVIL) No. - 254 of 2023

Applicant :- Shilpa Sharma

Opposite Party :- Aman Kumar Sharma

Counsel for Applicant :- Vageesh Pandey

Counsel for Opposite Party :- Kamlesh Kumar Dwivedi

Hon'ble Arvind Kumar Mishra-I,J.

1. Heard Sri Vageesh Pandey, learned counsel for the applicant, Sri Kamlesh Kumar Dwivedi, learned counsel for the respondent and perused the material brought on record.
2. This Transfer Application has been moved by the applicant seeking transfer of Divorce Petition No.1528 of 2020, under Section 13(1) (ia) (ib) of Hindu Marriage Act, pending in the court of Principal Judge, Family Court, Ghaziabad to the court of Principal Judge, Family Court, Hapur.
3. Submission is that the marriage between the parties was solemnized in the year, 2019. Thereafter, bitterness prevailed between the parties, as the husband and in-laws of the applicant started demanding dowry and harassing her for various reasons, therefore she was forced to leave the house of her in-laws and she came over to her parental home at District - Hapur, where she instituted proceedings under Section - 125 Cr.P.C. before the Family Court, Hapur.
4. In the meanwhile, it so happened that in order to exert pressure upon the applicant, a false and concocted petition for divorce under Section- 13(1) (ia) (ib) of the Hindu Marriage Act, 1955 was moved by the husband-opposite party. It is not possible for the applicant financially or physically to

defend outstation proceedings on each and every date fixed, as she is facing lot of hardships. She being housewife left with no source of livelihood is unable to meet expenses and to go to District - Ghaziabad. In case, the proceeding at District - Ghaziabad is allowed to go on, that would cause great hardship to the applicant.

5. Sri Kamlesh Kumar Dwivedi, learned counsel for the respondent has no objection and in regard thereto he has written in the order sheet of this case that he has no objection if the prayer of the applicant may be allowed for transferring the case from Ghaziabad to Hapur.

6. In view of above, specific and categorical view expressed by the counsel for the respondent, this case is being considered on its merit on the claim raised and the reply given in open Court by the learned counsel for the respondent.

7. Since, the counsel for the respondent- husband has no objection to the prayer made in the transfer application for transfer of the proceeding of Divorce Petition No.1528 of 2020, under Section 13(1) (ia) (ib) of Hindu Marriage Act, pending in the court of Principal Judge, Family Court, Ghaziabad to Principal Judge, Family Court, Hapur, therefore, this application is allowed and the aforesaid Divorce Petition No.1528 of 2020, under Section 13(1) (ia) (ib) of Hindu Marriage Act, pending in the court of Principal Judge, Family Court, Ghaziabad is transferred from District - Ghaziabad to District - Hapur.

8. Cost easy.

9. However, it is expected that proceeding of all the cases between the parties shall be expedited without causing unnecessary delay, so that the matter is not prolonged unnecessarily to the detriment of either of the party, thus serving the interest of justice.

Order Date :- 23.5.2023 Raj